

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
SHAWN ESTEVEZ,

Plaintiff,

-against-

NYPD POLICE OFFICER NICHOLAS CANIGLIA,
Shield No. 10226, NYPD POLICE OFFICERS JOHN
DOES NUMBERS 1-10

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 26, 2022

Yours, etc.
Cary London

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: OFFICER NICHOLAS CANIGLIA, 34th PCT, 4295 Broadway, New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

SHAWN ESTEVEZ,

Plaintiff,

-against-

NYPD POLICE OFFICER NICHOLAS CANIGLIA,
Shield No. 10226, NYPD POLICE OFFICERS JOHN
DOES 1-10

Defendants.
----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff Shawn Estevez, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 14, 2021, at approximately 12:15 a.m., Plaintiff Shawn Estevez, while lawfully in the vicinity of 123 Post Avenue, County and State of New York, was subject to an unlawful arrest, and detention by defendant Police Officers. Plaintiff was deprived of his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Shawn Estevez is a resident of the state of New York.
3. New York City Police Officer Nicholas Caniglia, Shield No. 10226, is and was at all times relevant herein an Officer with the New York City Police Department.
4. New York City Police Officer Nicholas Caniglia, Shield No. 10226, is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Nicholas Caniglia, Shield No. 10226 was assigned to the 34th Police Precinct of the NYPD.
6. New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. Police Officers John Does #1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
10. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

11. On May 14, 2021, at approximately 12:15 a.m., Plaintiff went outside of his apartment to smoke a cigarette in front of 123 Post Avenue, County and State of New York, when the defendant Police Officers unlawfully detained and arrested Plaintiff without legal justification.
12. Plaintiff sees a neighborhood kid that he knows and starts talking to him, while smoking his cigarette outside of his apartment.
13. Defendant Officers approach Plaintiff and say, "Put your hands behind your back."
14. Plaintiff, confused and scared, obeys the officers and places his hands behind his back.
15. The Defendants, without probable cause or legal authority, unlawfully put handcuffs on the Plaintiff and place him under arrest.
16. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

17. The Defendant Officers searched Plaintiff and found no contraband or anything illegal on him.
18. At no point in time did Plaintiff resist arrest in any way.
19. Plaintiff was taken to the 34th precinct by Defendant officers.
20. While Plaintiff was in custody, the defendant police officers provided the New York County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.
21. Specifically, the defendant police officers falsely stated to the New York County District Attorney's Office that Plaintiff committed Robbery.
22. No identification procedure was done, nor did any Complaining Witness accuse the Plaintiff of Robbery.
23. Upon information and belief, video surveillance from a building in the vicinity clearly showed that Plaintiff was not involved in any Robbery.
24. Defendant officers interrogated Plaintiff and then transferred him to Central Booking.
25. Plaintiff was arraigned in criminal court and released on his own recognizance.
26. Fourteen days elapsed from the day of Plaintiff's arrest to the day Plaintiff's case was dismissed and sealed on May 27, 2021.
27. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
28. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.
29. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
30. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.
31. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

32. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
33. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
34. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
35. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
36. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

37. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
38. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
39. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION
False Imprisonment

40. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
42. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.
43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the New York City Police Department, which are therefore responsible for their conduct.
44. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

45. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
46. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
47. Defendants failed to intervene to prevent the unlawful conduct described herein.
48. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, his property was damaged, and he was humiliated and subject to other physical constraints.
49. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the New York City Police Department, which are therefore responsible for their conduct.
51. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

52. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
53. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.
54. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.
55. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.
56. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
57. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the New York City Police Department, which are therefore responsible for their conduct.
59. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Malicious Prosecution

60. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
61. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
62. Defendants commenced and continued a criminal proceeding against Plaintiff.
63. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.
64. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

JURY DEMAND

65. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Shawn Estevez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
 January 26, 2022

By: *Cary London*
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

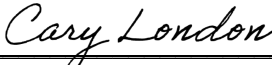
TO: OFFICER NICHOLAS CANIGLIA, 34th PCT, 4295 Broadway, New York, NY 10033

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 26, 2022



CARY LONDON